

What is a Patent?

A Patent is a statutory right for an invention granted for a limited period of time to the patentee by the Government, in exchange of full disclosure of his invention for excluding others.

Term of a patent: 20 years

The patent system in India is governed by the Patents Act, 1970 (No.39 of 1970) as amended from time to time.

Patent is country specific. Patents should be obtained in each country where the applicant requires protection of his invention.

Separate patent is needed for each country.

What can be patented?

An invention relating either to a product or process that is new, involving an inventive step (non-obviousness) and capable of industrial application can be patented. However, certain categories of inventions are non- patentable.

Inventions that are not patentable in India

- 1) an invention which is frivolous or which claims contrary to natural laws;
- 2) an invention contrary to public order or morality or harmful
- 3) discovery of scientific principle, living thing or non-living substance occurring in nature
- 4) discovery of a new form of a known substance
- 5) a substance obtained by mere admixture resulting only in the aggregation of the properties of the components
- 6) mere arrangement or re-arrangement or duplication of known devices each functioning independently of one another in a known way;
- 7) a method of agriculture or horticulture;
- 8) any process for medicinal, surgical, curative, prophylactic (diagnostic, therapeutic) or other treatment of human beings or animals
- 9) plants (including seeds) and animals other than microorganisms;
- 10) a mathematical or business method or a computer program;
- 11) a literary, dramatic, musical or artistic work or any other aesthetic creation whatsoever including cinematographic works and television productions;
- 12) etc...

Application for a Patent

Application can be filed at Indian Patent Office or online.

The information relating to the patent application is available in website of the Patent Office, www.ipindia.gov.in

A patent application can be filed either by first inventor or his assignee, either alone or jointly with any other person. Legal representative of any deceased person can also make an application for patent.

A patent application can be filed with provisional specification or with complete specification along with fee as prescribed in schedule.

An application for patent can be filed either in Hindi or English.

The types of applications

A) Ordinary Application

An application for patent filed in the Patent Office without claiming any priority either in a

convention country or without any reference to any other earlier application under process in the office. Such type of application is known as an ordinary application.

Ordinary application can be filed by way of filing

(i) Provisional specification, or (ii) Complete specification:

B) Convention Application

An application for patent filed in the Patent Office, claiming a priority date based on the same or substantially similar application filed in one or more of the convention countries is known as a convention application.

C) PCT International Application

An Application filed in India under Patent Cooperation Treaty is an international application which can be considered as deemed filed in more than 150 countries (member of PCT) by a single application.

D) PCT National Phase Application

When an international application is made according to PCT designating India, an applicant can file the national phase application in India within 31 months from the international filing date or the priority date, whichever is earlier.

E) Patent Of Addition

where an application is made for a patent in respect of any improvement in or modification of an invention.

F) Divisional Application

Dividing an invention into parts,

Patent Publication

Every application for patent is published before it is granted.

Application forms: filing up a set of forms is required.

List of Forms to be Submitted

- Form 1 : Application for grant of patent
- Form 2 : Provisional / complete specification
- Form 3 : Statement & undertaking under section 8
- Form 5 : Declaration as to inventorship
- Form 9 : Request for publication
- Form 18 : Request for examination of application for patent

A complete specification contains the following:

Title, Technical field of the invention, Background of the invention, Objects of the invention, Statement of the invention, A brief description of the drawings, A detailed description of the invention, Claims, Abstract

Patent Search

- Indian Patent <https://iprsearch.ipindia.gov.in/publicsearch>

Fees

FORMS	APPLICANT-NATURAL	APPLICANT-OTHER THAN NATURAL PERSON	
		SMALL ENTITY	OTHERS EXCEPT SMALL ENTITY
FORM 1	1600	4000	8000
FORM 2	NO FEES	NO FEES	NO FEES
FORM 3	NO FEES	NO FEES	NO FEES
FORM 5	NO FEES	NO FEES	NO FEES
FORM 9	2500	6250	12500
FORM 18	4000	10000	20000

LIFE CYCLE OF A PATENT APPLICATION

Patent Opposition

In India, both **pre-grant opposition** and **post-grant opposition** are mechanisms that allow third parties to challenge the grant of a patent.

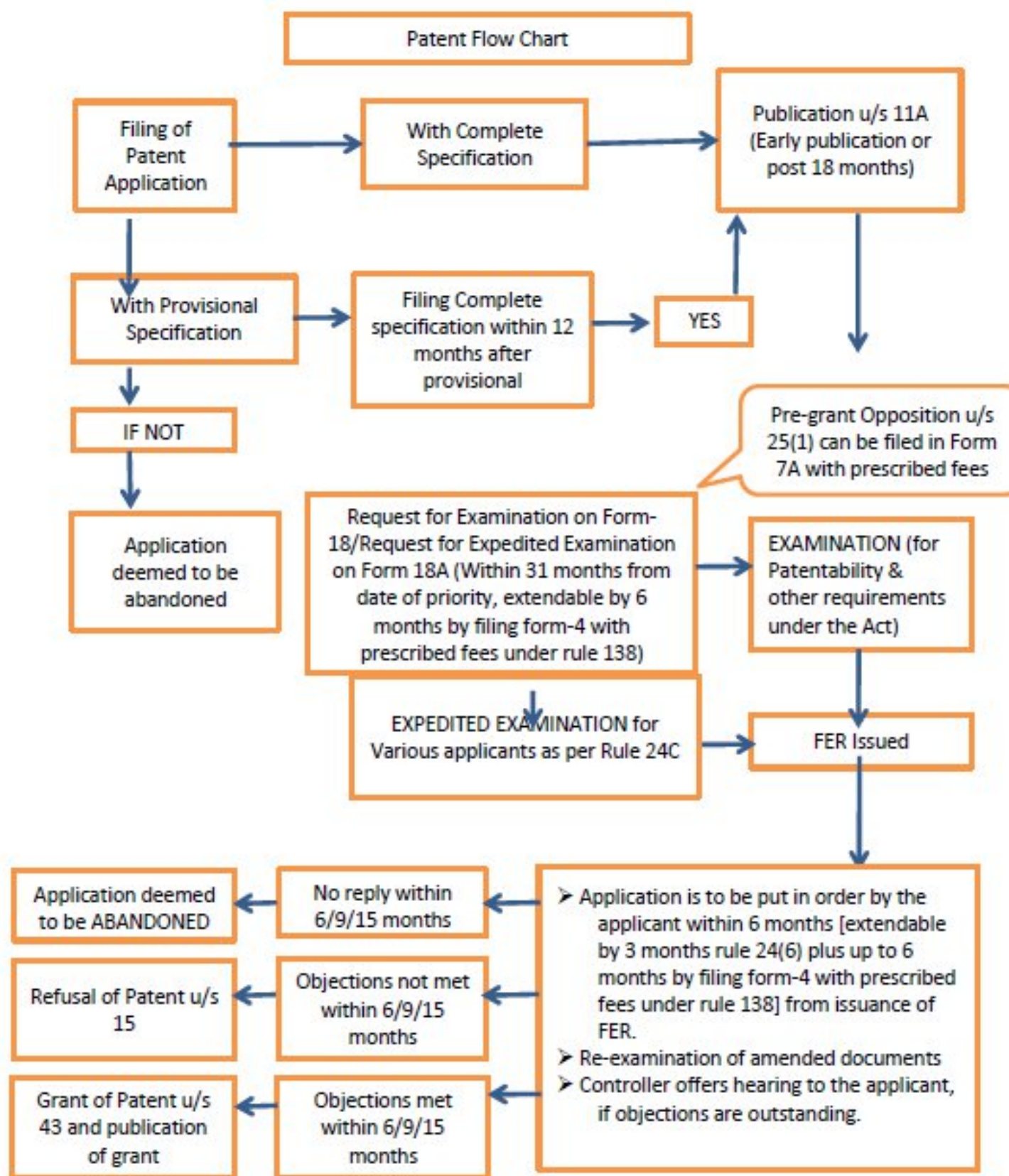
Pre-Grant Opposition

Timing: Filed after publication of the patent application but before grant of patent.

Who Can File: Any person can file a pre-grant opposition.

Grounds: The grounds for opposition include the invention being publicly known, obvious, not patentable, or the applicant not disclosing relevant information.

Procedure: The opposition is filed in writing. The Controller examines the statements of opponent and applicant before granting the patent.



Post-Grant Opposition

Patent can be challenged even after it is granted but within one year from the date of publication of the grant.

Patent Agent:

A Patent agent is a person registered with Indian Patent Office who is entitled—

- (a) to practice before the Controller General of Patent, Trademark and Design; and
- (b) to prepare all documents, transact all business and functions in connection with any proceeding before the Controller under this Act.

Eligibility – citizen of India; completed the age of 21 years; has a degree in science, engineering or technology; must pass an examination conducted by patent office.

It is not necessary to engage a registered patent agent for filing an application for patent.

Types of Patent

- Utility Patents
- Design Patents
- Plant Patents

Key Differences between Utility and Design Patent

Legal Acts: Utility Patents are governed by Patents Act, 1970 whereas Design Patents are administered by the Designs Act, 2000.

Nature of Protection: Design patents protect the visual appearance of an article, while utility patents protect the functional aspects of an invention.

Examination Criteria: Design patents are examined for novelty and originality, whereas utility patents are examined for novelty, inventive step, and industrial applicability.

Duration: Design patents term is 10 years, while utility patents last for 20 years.

There is no provision of Plant Patents in India. This aspect is governed by The Protection of Plant Varieties and Farmers' Rights (PPVFR) Act, 2001.

Obligations of Patentee

- Encourage and secure working of invention to fullest extent without undue delay.
- Not to use monopoly to unfairly prejudice interest of public.
- Failure to discharge duties reasonably, would lead to revocation of patent.
- To furnish periodical statements to Controller in Form 27, as to extend to which invention has been worked. Failure to provide statement to Controller may lead to imposition of penalty.
- Patentee has to maintain the patent by paying renewal fee after two years onwards. Patentee renewal fee can be paid every year or lumpsum.

Patent Infringement

There are civil and criminal consequences.

Civil Consequences

1. **Injunctions:** The patentee can seek an interim injunction to stop the infringing activities immediately. After a full trial, a permanent injunction may be granted.
2. **Damages:** The patentee can claim monetary compensation for the losses.
3. **Accounting of Profits:** The infringer may be required to account for and surrender the profits made from the infringement.

Criminal Consequences

1. **Fines and Imprisonment:** Claiming patent rights without authorization is a criminal offense. Penalties can include fines and imprisonment.

Remedies

1. **Administrative Remedies:** The patentee can approach the collector of customs to prevent the importation of infringing goods into India.
2. **Legal Action:** The patentee can file a lawsuit in the appropriate jurisdiction where the infringement occurred.

Timeline for obtaining a patent in India

1. **Filing the Application:** The process begins with filing a provisional or complete patent application. A provisional application can be filed without a set of claims, while a complete application includes detailed claims¹.
2. **Early Publication (Optional):** You can request early publication of your application by paying the prescribed fee. If not requested, the application will be published 18 months from the priority date¹.
3. **Request for Examination:** This must be filed within 48 months from the priority date. The examination process will not begin until this request is made¹.
4. **First Examination Report (FER):** Once the examination begins, the patent office issues an FER if there are objections. You have 12 months to respond to the FER¹.
5. **Hearing and Final Decision:** After addressing the objections, the patent office may schedule a hearing. The final decision (grant or rejection) is made based on the responses and any further clarifications provided.
6. **Grant of Patent:** If all requirements are met, the patent is granted, and a certificate of patent is issued.

Approximate Timeline:

- **Filing to Publication:** 18 months (or earlier if early publication requested)
- **Publication to Grant:** 12-24 months (depending on the complexity and any objections raised)